

2:00 PM

LINE 8

24-CIV-02856                      NENAD MILANOVIC, ET AL. VS. ALICIA CHAN, ET AL.

NENAD MILANOVIC  
ALICIA CHAN

MATTHEW D. HALEY  
STEPHEN C. TOSCHI

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DEMURRER TO CROSS-COMPLAINT AS TO CROSS-DEFENDANT COING, INC.

**TENTATIVE RULING:**

The demurrer is ordered off calendar. Cross-defendant did not provide proper notice of the hearing date (Cal. Rules of Court, rule 3.1110(b)(1)) and, therefore, the court must deny the demurrer because it lacks jurisdiction to hear it. (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 [“court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.”].)

At the time of filing, the hearing date on the notice of motion was changed. To date, the court’s record does not reflect the filing or service of an amended notice. While cross-complainants filed an opposition brief, they did not substantively reply and thus did not waive the defect. (See *Reedy v. Bussell* (2007) 148 Cal.App.4th 1272, 1288; *Tate v. Superior Court* (1975) 45 Cal.App.3d 925, 929.)

If the tentative ruling is not contested, it shall become the order of the court without the need for a formal order.

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2:00 PM

LINE 9

24-CIV-06622

HAMID JARIBEAN, ET AL. VS. GEORGE RUNCIE, ET AL.

HAMID JARIBEAN  
GEORGE RUNCIE

PRO SE  
STEVEN R. ROESER

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MOTION OF CROSS-DEFENDANT HAMID JAREBEAN TO SET ASIDE ENTRY OF DEFAULT

**TENTATIVE RULING:**

The court DENIES plaintiff/cross-defendant Hamid Jaribean's (plaintiff) motion to set aside a default entered against him in this matter. Defendants George and Nathalie Runcie have opposed the motion.

Defendants' Request for Judicial Notice of is GRANTED.

Plaintiff, then-represented by attorney Reshma Kamath, filed his complaint on October 24, 2024. On December 6, 2024, defendants filed and served their cross-complaint against plaintiff and co-plaintiff HR Construction & Remodeling. On October 21, 2025, the court entered a default against plaintiff. On November 8, 2025, Ms. Kamath's license to practice law was declared inactive by the State Bar. (RJN, Ex. A., State Bar Attorney Profile, License Status.) On April 24, 2026, more than six months after default was filed, plaintiff filed a notice of substitution of attorney – signed November 20, 2025 – substituting Ms. Kamath out and proceeding in pro per. Also on April 24, 2026, plaintiff filed the instant motion to set aside default, for which the proof of service was electronically signed by Ms. Kamath. On June 26, 2026, Ms. Kamath was disbarred.

The law favors judgments based on the merits, not procedural missteps. Our Supreme Court has repeatedly reminded us that in this area doubts must be resolved in favor of relief, with an order denying relief scrutinized more carefully than an order granting it. “As Justice Mosk put it in *Rappleyea [v. Campbell]* (1994) 8 Cal.4th 975] Because the law favors disposing of cases on their merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default [citations].” (*Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 134–135 [internal quotations omitted].)

However, in most instances, the law also sets deadlines for motions for relief from default and in all circumstances established rules to obtain relief from default.

Plaintiff argues that the default should be set aside because no summons was ever served. This argument fails because plaintiff was already a party to the case, having filed the initial complaint. For represented parties who have appeared, a cross-complaint shall be served upon the party's attorney in the same manner provided for notices during litigation of the case. (Code Civ. Proc., § 428.60, subd. (2).) The cross-complaint was served on the attorney of record by email.

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